

CinderCloud Enterprise MSA - Amendment No. 1

Amendment 1

Effective 2026-09-12, Section 4 is deleted and replaced. Formal notice now requires 45 days. All other provisions remain unchanged except as expressly stated.

Liability Revision

Section 9 is amended so the aggregate liability cap is \$620,000. This revision is substantive.

Administrative Changes

Exhibit A is renumbered Exhibit B and the word "recieve" is corrected to "receive". These administrative corrections do not change substantive obligations.

General Provision GP-01

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-01 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-02

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-02 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-03

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-03 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-04

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-04 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-05

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General Provision GP-06

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-06 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-07

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-07 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-08

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General Provision GP-09

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General Provision GP-10

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General Provision GP-11

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General Provision GP-12

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-12 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.